

8. S-PR-0013576 In Re the Farnworth Fam Trust

Appearance is required for continued hearing on petition to approve trustee 1st and 2d accounts.

Missing notice of hearing. Missing proof of service of notice of hearing.

Note: there appears to be omitted text at page 1, line 27.

1st trustee account:

(i) Missing summary of account (Prob.C. § 1061(a)).

(ii) Account incorrectly schedules transfers between accounts as charges (receipts); transfers between accounts are neither charges nor credits and should be shown in a supplemental schedule of change in form of assets; revision is needed.

(iii) Account incorrectly schedules "change in value" of securities account as charges (receipts); Prob.C. § 1060 accounts are carry-value accounts; changes in market value are not to be scheduled except as gains / losses upon sale, or in other unusual circumstances; revision is needed.

(iv) Account incorrectly schedules transfers between accounts as credits (disbursements); transfers between accounts are neither charges nor credits and should be shown in a supplemental schedule of change in form of assets; revision is needed.

(v) Clarification is needed as to 5-21-2018 withdrawal of \$16,800; this appears to be a beneficiary distribution, not a disbursement, and should be scheduled in a distribution schedule (see Prob.C. § 1062(e); compare § 15062(b)).

2d trustee account:

(i) Missing summary of account (Prob.C. § 1061(a)).

(ii) Beginning property on hand conflicts with 1st account closing property on hand by more than \$100,000 without explanation; revision is needed.

(iii) Clarification is needed: closing property on hand schedule shows two cash accounts and investment account with whole-dollar balances, which is unlikely to be accurate.

(iv) Account is out of balance by more than \$19,500 without explanation; revision is needed.

(vi) Real property carry value was modified without explanation; trustee cannot change carry value without scheduling gain / loss on sale or other action establishing a reasonable basis for the change in carry value (including how, when, and for what reason carry value was modified; revision is needed.

9. S-PR-0013629 In Re the Estate of Williams, Delores L.

Appearance is required for hearing on petition for final distribution.

Court determination is needed as to request to distribute a portion of the estate contrary to the will. Missing legal points and authorities to support the requested distribution.